

10.3 Cases which must be referred to the Commission for a decision

In certain circumstances the Irish customs authority is not competent to make a decision under Articles 119 and 120 UCC and only the Commission can make the decision.

If any of the following circumstances arise, the file must be submitted to the Commission for a decision (Article 116(3) UCC):

- The customs authorities consider that the Commission committed the error (Article 119 UCC).
- The customs authorities consider that the special circumstances are the result of the Commission failing in its obligations (Article 120 UCC).
- The application falls within Articles 119 or 120 UCC **and** the amount equals or exceeds €500,000 (both these conditions must apply).

10.4 Cases which do not have to be referred to the Commission

In any of the following circumstances the file does not have to be referred to the Commission for a decision.

- Where the Commission has already adopted a decision on a case involving comparable issues of fact and of law.
- Where the Commission is already considering a case involving comparable issues of fact and of law.
- Where the Irish customs authority conclude that an application for repayment or remission under Articles 119 or 120 is not justified.
- Where an application for repayment or remission falls under Article 117 UCC, regardless of whether the amount equals or is greater than €500,000. (The TOR Unit will keep a record of all decisions where the amount repaid under Article 117 was equal to, or less than €500,000).

It must be noted that, while the local customs officer can make a decision on an application for **repayment** of customs duties under Article 117 UCC, only the TOR Unit can make a decision on **remission** of customs duties under this article.

10.5 No repayment or remission in case of deception

No repayment or remission can be granted when the situation which led to the notification of the customs debt resulted from deception by the debtor (Article 116 (5) UCC).

Generally, deception may include, but is not limited to acts that have given rise to criminal proceedings. Any operator who has acted in deception is barred from receiving repayment or remission of duties.